CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. EDC65D609
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN FULL

From: Kenny Maltby <kenny_maltby@eott.com>
Sent: Wed, 21 Feb 2001 09:26:00 -0800 (PST)
To: Larry Campbell <larry.campbell@enron.com>
Cc: Bob Jacobs <eott@eott.com>, Dana Gibbs <eott@eott.com>, Edward Attanasio <eott@eott.com>, John Shafer <john.shafer@enron.com>, Larry Campbell <larry.campbell@enron.com>, Lawrence Clayton <lawrence_clayton@eott.com>, Louis Soldano EnronXGate <louis.soldano.enronxgate@enron.com>, Matt Hughes <matt_hughes@enron.com>, Molly Sample <eott@eott.com>, Phil Lowry <phil.lowry@enron.com>, Rich Jolly <rich.jolly@enron.com>, Scott Jones <eott@eott.com>, William Kendrick <william.kendrick@enron.com>
Subject: Re: Rogas Line -- USFW Approval

I will get a name from Randy and see if we can set something up for next week. I believe the contact is Dr. Jeffrey Single, with all the changes it's a good idea for us and Scott Jones to set down with them so they know who we are. I don't feel they have lack of confidence in us but all the contact with them is through our consultant. To get this project started we might have to purchase the compensation credits through Area or face more delays. The approval from the Fish and Wildlife Service stated that the Kern Water Bank would need a letter from CLEP that we had purchased compensation credits. I contacted them today to see if we could post a letter of credit instead but they had not received the approval letter from the Fish and Game. Cheryl Harding at KWB was surprised that we had to provide this information to her.

I will set something up as and let you know as soon as possible.

Larry.Campbell
@enron.com
02/21/2001
04:32 PM

To: Kenny Maltby/Bakersfield/Eott@Eott

cc: John.Shafer@enron.com, Bob Jacobs/Long_Beach/Eott@Eott, Dana Gibbs/Houston/Eott@Eott, Edward Attanasio/Remote/Eott@Eott, Larry Campbell@Enron,

Lawrence Clayton/Houston/Eott@Eott, Louis.Soldano.EnronXGate@enron.com, Matt

Hughes/Houston/Eott@Eott, Molly Sample/Houston/Eott@Eott,

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Phil.Lowry@enron.com,
Rich Jolly@Enron, Scott Jones/Bakersfield/Eott@Eott, William.Kendrick@enron.com
Subject: Re: Rogas Line -- USFW Approval

Kenny, I think its time we met the Fish and Game and smoothed this issue out. Do you feel comfortable going to them or would you like me to go with you? I think under the circumstances, we both should meet with the Game and Fish and make sure that they have a level of confidence in EOTT and this project. Due to Randi's involvement, why dont you get a contact from her and lets discuss an appropriate time next week (Tuesday or Wednesday) to meet the F&G? There are some other issues we need to discuss with them in addition to this conservation credit acreage and we can make the most out of the trip.

Kenny_Maltby@eott.com on 02/21/2001 04:11:32 PM

To: John.Shafer@enron.com
cc: Bob_Jacobs@eott.com, Dana.Gibbs%Eott@EOTT.COM, Edward.Attanasio%Eott@EOTT.COM, Larry_Campbell%Enron@EOTT.COM, Lawrence_Clayton@eott.com, Louis.Soldano.EnronXGate@enron.com, Matt_Hughes@eott.com, Molly_Sample@eott.com, Phil.Lowry@enron.com, Rich_Jolly%Enron@EOTT.COM, Scott.Jones%Eott@EOTT.COM, William.Kendrick@enron.com

Subject: Re: Rogas Line -- USFW Approval

I obtained a copy of a letter sent to Gary Fuller from the Department of Fish and Game on November 3, 2000. In the letter the Fish and Game agreed EOTT has 41 Acres of conservation credits based on Arco Western Energy's sale of the North Coles Levee fractionator plant and premises to Koch Oil and Gas, and Koch's subsequent sale of the plant and premises to EOTT

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ENERGY.

In the letter the following limitations and clarifications were listed:

Because the conservation credits may be used for mitigation of EOTT impacts, or sold by EOTT to third parties for their own mitigation needs, EOTT must affirm that it will conform to the Department's standards for sale of conservation credits as well as management of the credit lands.

These obligations are already implied by the chain of Koch's and then EOTT's acquisitions of the North Coles Levee fractionator plant. EOTT and Department representatives will need to meet to discuss these details and determine the most efficient means to implement these conditions.

Key provision of the obligations that attend using the conservation credits include Department approval of third-party sales; minimum endowment requirements for all credit sales; management and monitoring of habitat conditions; and additional mitigation for disturbance to dedicated habitat.

Habitat continuity and small animal movement between the North Coles fractionator plant site and the remainder of Coles Levee Ecosystem Preserve must be provided in order to maintain viability of the habitat within EOTT's holdings.

Although it appears we do have the credits for NCL, I do not know if Gary ever met with the Fish and Game to discuss the details or means to implement the conditions for use of the conservation credits. With the project set to start we may have to purchase the 15.3 acres of credit from Area.

John Shafer@ENRON
02/21/2001 05:50 AM

To: Kenny Maltby/Bakersfield/Eott@Eott, Scott Jones/Bakersfield/Eott@Eott
cc: Matt_Hughes@eott.com, Bob_Jacobs@eott.com, Molly_Sample@eott.com, Larry_Campbell%Enron@EOTT.COM, Rich_Jolly%Enron@EOTT.COM, Lawrence Clayton/Houston/Eott@Eott, Dana Gibbs/Houston/Eott@Eott, Louis Soldano/Enron@EnronXGate, William

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Kendrick/OTS/Enron@ENRON, Edward Attanasio/Remote/Eott@Eott, Phil Lowry/OTS/Enron@ENRON
Subject: Re: Rogas Line -- USFW Approval

(Document link: Kenny Maltby)

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